

Authority from a Shiite Perspective



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A paper describing the nature of religious authority in Shi'a Islam with emphasis on comparing and contrasting this topic with the analogous concepts in Catholicism and Sunni Islam.

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Authority from a Shi'ite Perspective

Dr Muhammad Legenhausen

In this paper I propose to describe the teachings of Shi'ite Islam about authority in a manner accessible to Catholic partners in dialogue. For this purpose, I will contrast Shi'ite views on these issues with those of Catholics, and those of Sunni theologians, and I will also mention a few of the differences of opinion on these matters among the various Shi'ite sects and Sufis.

To begin with, we need to clarify what is meant by *authority*. Needless to say, there is no concept in the Muslim intellectual traditions that is exactly equivalent to the concept of authority as understood by Christians. The differences between Shi'ite and Catholic thinking about what Catholics would describe as issues of *authority*, are likely to lead to misunderstandings if not directly addressed.

Authority is multifaceted. There is political authority, teaching authority, sacramental authority, spiritual authority, legal authority, and more; but it may be convenient to limit ourselves to these five facets of authority.

Next we can speak of *de facto* and *de jure* authority. Someone has *de facto* authority when he holds a position, and by virtue of holding that position is accorded authority. The person holding the position is able to carry out various activities that are not permitted to persons who do not hold the position. *De facto* authority may be challenged by those who claim that the person who holds the position does not

do so legitimately. They claim that although the person holding the office may have *de facto* authority, the person lacks *de jure* authority.

Finally, we should speak of the ways in which authority is conferred, and its source or sources. Various sorts of authority are won by military strength, knowledge, appointment by God, popular approval, birth, wealth, and by other means. Of course, not all of the ways in which people gain positions of *de facto* authority are considered acceptable. Bribery is a means of gaining various sorts of *de facto* authority, but it is never a means of winning *de jure* authority.

After discussing the facets, propriety, and transfer of authority in a rather abstract fashion, we can turn to an examination of how Catholics and Shi'ites understand these issues.

Once we have examined authority, we will turn very briefly to the issue of tradition. Our approach to tradition will not, however, review the relevant concepts in all their generality, but only as they pertain to issues of authority.

Authority and Wilayah

There are various types of authority. Teachers have authority over their students. Employers have authority over their employees. Parents have authority over their children. None of these sorts of authority are absolute. Parents do not have authority to abuse their children. Authority is not mere liberty to command. The limits on authority are especially pronounced in Islam.

All authority belongs ultimately to God, and different people exercise specific types of authority according to the responsibilities given to them. One who exercises authority may be required to use personal discretion, but discretion is always to be employed in order to carry out one's duties in the best possible way, and does not imply that one has a free hand to do whatever one wants.

If there is any absolute authority, it is the authority of God. (This sentence questions *if* there is any absolute authority.... How about: The only absolute authority is the authority of God.)Here, however, there is a difference between Shi'ite and Ash'arite views.

Most Sunnite theologians accept an Ash'arite position, according to which all moral obligation derives from divine commands, and that since it does not make sense to speak of God commanding Himself, He is not constrained by any moral obligations. It would not be wrong for Him to command murder and stealing, but rather, if He commanded them, they would become morally obligatory.

Shi'ites, on the other hand, along with the Mu'tazilites, hold that what we know by reason to be wrong, could never be commanded by God. The Ash'arites object that this seems to imply that reason—or the absolute moral values discerned by reason—has an authority above the authority of God. Heaven forbid!

Shi'ites respond that this is a misunderstanding of the nature of authority. God cannot command what is

wrong because He is essentially just, not because He is subservient to justice or reason, or because He lacks sufficient power to be unjust. God has absolute authority, not in the sense that He could command what is wrong, but that He does whatever He wills, and He necessarily wills what is just and what is better than justice, e.g., grace, because He is essentially just and merciful.

The God of Abraham, Noah, Moses, Jesus and Muhammad (peace be with him and his progeny and with them all) is no Pater Liber. [1](#)

The absolute authority of God does not mean that God is at liberty to do evil, but neither does it imply that He is not at liberty. Likewise, the expertise of a craftsman does not mean that if the craftsman were to produce something unbefitting his skill, then he has the authority to do so because of his expertise.

Neither does it imply that the craftsman who exercises his skill is not at liberty to make what he wants. God does whatever He wills, but His will is not arbitrary. God does whatever He wills, but His willing is never evil, because this would contradict His essence.

In Shi'ite sources, there is no general term for authority as it occurs in Western languages, used for the concepts of divine authority, scriptural authority, church authority, etc.. Occasionally, one who has the power of command is referred to by the word *suḥḥān* (from which comes the English "sultan"), *malik* (sovereign), *malik* (owner, possessor), and *hujjah*. Among the Names of God mentioned in the Qur'an, we find *al-Malik* (20:114), and *Malik al-Mulk* (which has been translated as "Master of the Kingdom", "Owner of All", and "Master of all sovereignty").

There are no divine Names based on the roots of *suḥḥān* or *hujjah*, although reference to divine authority can be found in which such terms are employed. Other terms that are used to indicate divine authority are: *al-Haqq* (the Truth), *al-Rabb* (Lord), *Dhê al-Jalal* (Possessor of Majesty), and a number of others, each of which repays study with a greater appreciation of the nature of divine authority in Islam.

The notion of authority is closely related to that of obedience; so, we should also look at what the Qur'an has to say about obedience and following in order to get a clearer picture of how authority is viewed in Islam.

Let's begin with *suḥḥān*. What is most characteristic of the use of this word in the Qur'an is that it is used to condemn idolatry as unauthorized, in contrast to which the missions of the prophets are described as authorized.

The following verses may be grouped together because they all pertain to the condemnation of unauthorized idolatry [which is contrasted with the authorized message of monotheism (*tawhid*) brought through the prophets].

We could say that these verses indicate a negative concept of authority, in that they deny authority for idolatry. These verses are relevant to teaching authority, for they condemn false unauthorized religious

teachings, and to sacramental authority, for they condemn unauthorized worship of false gods.

سَنُلْقِي فِي قُلُوبِ الَّذِينَ كَفَرُوا الرُّعْبَ بِمَا أَشْرَكُوا بِاللَّهِ مَا لَمْ يُنْزَلْ بِهِ سُلْطَانًا وَمَأْوَاهُمُ النَّارُ وَبِئْسَ مَثْوَى الظَّالِمِينَ

We shall cast terror into the hearts of the faithless because of their ascribing to Allah partners for which He has not sent down any authority, and their refuge shall be the Fire; and evil is the abode of the wrongdoers. (3: 151)

وَكَيْفَ أَخَافَ مَا أَشْرَكْتُمْ وَلَا تَخَافُونَ أَنَّكُمْ أَشْرَكْتُم بِاللَّهِ مَا لَمْ يُنْزَلْ بِهِ عَلَيْكُمْ سُلْطَانًا فَأَيُّ الْفَرِيقَيْنِ أَحَقُّ بِالْأَمْنِ إِنْ كُنْتُمْ تَعْلَمُونَ

How could I [Abraham] fear what you ascribe as partners, when you do not fear ascribing to Allah partners for which He has not sent down any authority to you? (6:81)

قُلْ إِنَّمَا حَرَّمَ رَبِّي الْفَوَاحِشَ مَا ظَهَرَ مِنْهَا وَمَا بَطَنَ وَالْإِثْمَ وَالْبَغْيَ بِغَيْرِ الْحَقِّ وَأَنْ تُشْرِكُوا بِاللَّهِ مَا لَمْ يُنْزَلْ بِهِ سُلْطَانًا وَ أَنْ تَقُولُوا عَلَى اللَّهِ مَا لَا تَعْلَمُونَ

Say, 'My Lord has only forbidden indecencies... and that you should ascribe to Allah partners for which He has not sent down any authority... (7:33)

أَتَجِدُلُونَنِي فِي أَسْمَاءٍ سَمَّيْتُمُوهَا أَنْتُمْ وَءَابَاؤُكُمْ مَا نَزَلَ اللَّهُ بِهَا مِنْ سُلْطَانٍ

...Do you dispute with me regarding names that you have named—you and your fathers—for which Allah has not sent down any authority? (7:71)²

مَا تَعْبُدُونَ مِنْ دُونِهِ إِلَّا أَسْمَاءٌ سَمَّيْتُمُوهَا أَنْتُمْ وَءَابَاؤُكُمْ مَا أَنْزَلَ اللَّهُ بِهَا مِنْ سُلْطَانٍ إِنْ الْحُكْمُ إِلَّا لِلَّهِ أَمَرَ أَلَّا تَعْبُدُوا إِلَّا إِيَّاهُ ذَلِكَ الدِّينُ الْقَيِّمُ وَلَكِنَّ أَكْثَرَ النَّاسِ لَا يَعْلَمُونَ

You do not worship besides Him but names that you and your fathers have coined for which Allah has not sent down any authority. Sovereignty belongs only to Allah... (12:40)

وَلَا يَأْتُونَ عَلَيْهِمْ بِسُلْطَانٍ بَيِّنٍ

...if only they would bring some clear authority concerning them [gods besides Him]... (18: 15)

أَمْ أَنْزَلْنَا عَلَيْهِمْ سُلْطَانًا فَهُوَ يَتَكَلَّمُ بِمَا كَانُوا بِهِ يُشْرِكُونَ

Have We sent down to them any authority which might speak of what they associate with Him? (30:35)

وَيَعْبُدُونَ مِن دُونِ اللَّهِ مَا لَمْ يَنْزَلْ بِهِ سُلْطَانًا وَمَا لَيْسَ لَهُم بِهِ عِلْمٌ

They worship besides Allah that for which He has not sent down any authority, and of which they have no knowledge... (22:71)

The link between authority and knowledge is important. Those without legitimate authority don't know what they're talking about. This would seem to indicate a lack of teaching authority, since the reference to eavesdropping indicates that those condemned lack knowledge on which to base their pronouncements. They are ridiculed by God in the following verse:

أَمْ لَهُمْ سُلْمٌ يَسْتَمِعُونَ فِيهِ فَلَيَأْتِ مُسْتَمِعُهُمْ بِسُلْطَانٍ مُّبِينٍ

Or do they have a ladder whereby they eavesdrop? If so let their eavesdropper produce a manifest authority. (52:38)

No one becomes privy to the divine knowledge by illegitimate means:

يَمْعَشَرِ الْجِنَّ وَالْإِنْسِ إِنِ اسْتَطَعْتُمْ أَنْ تَنْفُذُوا مِنْ أَقْطَارِ السَّمَوَاتِ وَالْأَرْضِ فَانْفُذُوا لَا تَنْفُذُونَ إِلَّا بِسُلْطَانٍ

O company of jinn and humans! If you can pass through the confines of the heavens and the earth, then do pass through. But you will not pass through except by an authority. (55:33)

Likewise, the attribution of polytheistic doctrines about God is declared to be unauthorized and not based on any knowledge.

قَالُوا اتَّخَذَ اللَّهُ وَلَدًا سُبْحَنَهُ هُوَ الْغَنِيُّ لَهُ مَا فِي السَّمَوَاتِ وَمَا فِي الْأَرْضِ إِنَّ عِنْدَكُمْ مِّنْ سُلْطَانٍ بِهَذَا أَتَقُولُونَ عَلَى اللَّهِ مَا لَا تَعْلَمُونَ

They say, 'Allah has taken a son!' Immaculate is He! To Him belongs whatever is in the heavens and whatever is in the earth. You have no authority for this. Do you attribute to Allah what you do not know? (10:68)

This verse has figured prominently in theological disputes between Christians and Muslims, but the point

is general, and asserted in much the same way against polytheists who held that the angels were the daughters of God. Christians respond that they do not hold that the second person of the Trinity is a son in the sense condemned in the above verse.

However, this is not the place to review the history of *that* discussion. What is at issue here is that improper religious beliefs are condemned as being taught without authority; and once again, it is primarily teaching authority that is at issue, and those condemned for unauthorized teaching are condemned for making attributions without knowledge.

أَمْ لَكُمْ سُلْطَنٌ مُّبِينٌ

Do you have a manifest authority? (37: 156)

[asked of those who hold that Allah has begotten daughters]

إِنَّ الَّذِينَ يَجْدِلُونَ فِي آيَاتِ اللَّهِ بِغَيْرِ سُلْطَنٍ أَتَاهُمْ إِنْ فِي صُدُورِهِمْ إِلَّا كِبْرٌ مَا هُمْ بِبَلِّغِيهِ

Indeed those who dispute the signs of Allah without any authority that may have come to them—there is only vanity in their breasts, which they will never satisfy.... (40:56)

Next we have verses that declare the divine authorization of the prophets, for whom Moses stands as an exemplar. These verses indicate a positive concept of authority, the divine authorization given to the prophets. Here, the authority is not limited to teaching, but has legal and political dimensions, as well.

وَأَتَيْنَا مُوسَى سُلْطَانًا مُّبِينًا

...and We gave Moses a manifest authority. (4: 153)

وَلَقَدْ أَرْسَلْنَا مُوسَى بِآيَاتِنَا وَ سُلْطَنٍ مُّبِينٍ 69 (إِلَىٰ فِرْعَوْنَ وَ مَلَائِهِ فَاتَّبَعُوا أَمْرَ فِرْعَوْنَ وَ مَا أَمْرُ فِرْعَوْنَ بِرَشِيدٍ

Certainly We sent Moses with Our signs and a manifest authority/ to Pharaoh and his elite, but they followed Pharaoh's dictates, and Pharaoh's dictates were not right. (11: 96–97)

ثُمَّ أَرْسَلْنَا مُوسَى وَ أَخَاهُ هَارُونَ بِآيَاتِنَا وَ سُلْطَنٍ مُّبِينٍ

Then We sent Moses and Aaron, his brother, with Our signs and a manifest authority... (23:45).

This is similar to (28:35), just Moses is mentioned with the signs and manifest authority at (40:23), (51:38). Moses tells Pharaoh that he has a manifest authority from God at (44: 19), where opposition to freeing (giving over to Moses) the Israelites, “the servants of God”, is considered rebellion against God. So, the authority given by God to the prophets is over whoever God wishes, and is not confined to the prophet himself or his people. Moses has *de jure* authority over Pharaoh, even if Pharaoh refuses to recognize it.

وَلَكِنَّ اللَّهَ يُسَلِّطُ رُسُلَهُ عَلَىٰ مَن يَشَاءُ

...but Allah gives authority to His apostles over whomsoever He wishes (59:6)

While various people challenge the authority of the prophets, the prophets acknowledge that whatever authority they bring is only by the permission of God. Here the authority may be indicated in the form of a miracle, or sign indicative of their mission.

قَالُوا إِنَّا أَنْتُمْ إِلَّا بَشَرٌ مِّثْلُكُمْ تُرِيدُونَ أَن تَصَدُّونَا ۚ إِنَّا كُنَّا نَعْبُدُ آبَاءَنَا فَأَتَوْنَا بِسُلْطَنٍ مِّبِينٍ ۚ قَالَتْ لَهُمْ رُسُلُهُمْ إِنَّا نَحْنُ إِلَّا بَشَرٌ مِّثْلُكُمْ ۚ وَلَكِنَّ اللَّهَ يَمُنُّ عَلَىٰ مَن يَشَاءُ مِنْ عِبَادِهِ ۚ وَمَا كَانَ لَنَا أَنْ نَأْتِيَكُمْ بِسُلْطَنٍ إِلَّا بِإِذْنِ اللَّهِ ۚ وَ عَلَىٰ اللَّهِ فَلْيَتَوَكَّلِ الْمُؤْمِنُونَ

...They said, 'You are nothing but humans like us who desire to bar us from what our fathers used to worship. So bring us a manifest authority.' Their apostles said to them, 'Indeed we are just human beings like yourselves, but Allah favors whomever of His servants He wishes. We may not bring you an authority except by Allah's leave, and in Allah let all the faithful put their trust.' (14: 10–11)

Another important instance of negative authority, or authority denied, is the case of Iblis, or Satan. What is denied here is not specifically teaching authority, but a quasi-political/legal right to rule over or command.

إِنَّ عِبَادِي لَيْسَ لَكَ عَلَيْهِمْ سُلْطَنٌ وَكَفَىٰ بِرَبِّكَ وَكِيلًا

As for My servants, you [Satan] shall have no authority over them (17:65)

وَقَالَ الشَّيْطَانُ لَمَّا قُضِيَ الْأَمْرُ إِنَّ اللَّهَ وَعَدَكُمْ وَعْدَ الْحَقِّ ۚ وَعَدْتُكُمْ فَأَخْلَفْتُكُمْ ۚ وَمَا كَانَ لِيَ عَلَيْكُمْ مِنْ سُلْطَنٍ إِلَّا أَن دَعَوْتُكُمْ فَاسْتَجَبْتُمْ لِي

...Satan will say, 'Indeed Allah made you a promise that was true and I made you a promise, but I

failed you. I had no authority over you, except that I called you and you responded to me...

(14:22)

Just as Satan admits that he had no legitimate authority over man, the idols will testify against their worshippers at the end of the world:

وَمَا كَانَ لَنَا عَلَيْكُمْ مِّنْ سُلْطَانٍ بَلْ كُنْتُمْ قَوْمًا طَٰغِينَ

...we [what wrongdoers used to worship] had no authority over you; no, you were an insolent people... (37:30)

Satan does exert a sort of *de facto* authority over man, as is indicated by the words I called you and you responded to me, but this is not a legitimate form of authority. It merely means that Satan is obeyed by men. We see the same distinction in the following verses.

إِنَّ عِبَادِي لَيْسَ لَكَ عَلَيْهِمْ سُلْطَانٌ إِلَّا مَنِ اتَّبَعَكَ مِنَ الْغَاوِينَ

Indeed as for My servants, you [Iblis] do not have any authority over them, except the perverse who follow you (15:42)

إِنَّهُ لَيْسَ لَهُ سُلْطَانٌ عَلَى الَّذِينَ ءَامَنُوا وَعَلَىٰ رَبِّهِمْ يَتَوَكَّلُونَ (99) إِنَّمَا سُلْطَانُهُ عَلَى الَّذِينَ يَتَوَلَّوْنَهُ وَالَّذِينَ هُمْ بِهِ مُشْرِكُونَ

Indeed he [Satan] does not have any authority over those who have faith and put their trust in their Lord. His authority is only over those who befriend him and those who make him a partner [of Allah]. (16:99-100)

The possibility of *de facto* Satanic authority is the result of the free will granted to human beings. Satan is able to tempt:

وَمَا كَانَ لَهُ عَلَيْهِمْ مِّنْ سُلْطَانٍ إِلَّا لِنَعْلَمَ مَنْ يُّؤْمِنُ بِالْآخِرَةِ مِمَّنْ هُوَ مِنْهَا فِي شَكٍّ

He [Iblis] had no authority over them, but that We may ascertain those who believe in the Hereafter from those who are in doubt about it... (34:21)

Often the believers have been protected by God from the *de facto* authority of tyrants:

وَلَوْ شَاءَ اللَّهُ لَسَلَّطَهُمْ عَلَيْكُمْ فَلَقَاتَلُوكُمْ

...had Allah wished, He would have given them authority against you, and then they would surely have fought you. (4:90)

There is a recurrent association of tyranny and the illegitimate exercise of authority, the taking up of idols, the failure to follow the prophets, and disputing religious tenets without divine authority.

الَّذِينَ يَجِدُونَ فِي آيَاتِ اللَّهِ بَغْيًا سُلْطَانًا أَتَاهُمْ كِبَرٌ مَقْتًا عِنْدَ اللَّهِ وَ عِنْدَ الَّذِينَ ءَامَنُوا كَذَلِكَ يَطْبَعُ اللَّهُ عَلَى كُلِّ قَلْبٍ مُتَكَبِّرٍ جَبَّارٍ

Those who dispute the signs of Allah without any authority that may have come to them—[that is] greatly outrageous to Allah and to those who have faith. That is how Allah seals the heart of every arrogant tyrant. (40:35)

Authority often has the sense of permission. The signs brought by the prophets are by the permission of God. The religious/legal permission to take retribution for murder is also described as an authority.

وَمَنْ قُتِلَ مَظْلُومًا فَقَدْ جَعَلْنَا لَوْلِيٍّ سُلْطَانًا

...and whoever is killed wrongfully, We have certainly given his heir an authority (17:33)

Likewise permission for self-defence against hostile idolaters is described as an authority, perhaps better translated in this case and the above as authorization. The authorization here pertains to what is to be considered lawful, not to teaching, spirituality, or worship.

وَأُولَئِكَ جَعَلْنَا لَكُمْ عَلَيْهِمْ سُلْطَانًا مَبِينًا

...and it is such against whom We have given you a clear authorization. (4:91)

When the hoopoe doesn't show up on time for Solomon, he says:

لَأُعَذِّبَنَّهُ عَذَابًا شَدِيدًا أَوْ لَأَذْبَحَنَّهُ أَوْ لِيَأْتِنِي بِسُلْطَانٍ مُبِينٍ

'I will surely punish him with a severe punishment, or I will surely behead him, unless he brings a clear authority (27:21)

The meaning of “authority” here is also that of an *authorization* or *excuse*. When one has no excuse left to offer, one is said to lack authority:

My authority has departed from me (69:29)

This is spoken by the sinners who are given their books in their left hands on the judgment day and have no legal excuse on the basis of which to seek to avoid punishment.

Treachery is seen as an invitation to disaster, as if one were giving permission to God to make one wretched. Of course, God does not *need* the permission of humans for anything; yet by failing to carry out the conditions needed for being granted a reward, it is as though one gives permission to the authority not to grant the reward.

يَا أَيُّهَا الَّذِينَ ءَامَنُوا لَا تَتَّخِذُوا الْكَافِرِينَ أَوْلِيَاءَ مِن دُونِ الْمُؤْمِنِينَ أَمَنَّا أَن تُبَدِّلُوا دِينَكُمْ فَذِكْرٌ لِلَّذِينَ ءَامَنُوا مِن يَوْمٍ تُنْفَخُ السُّورَةُ

O you who have faith! Do not take the faithless for friends instead of the faithful. Do you wish to give Allah a clear authorization against yourselves? (4: 144)

Every believer seeks divine guidance, and so seeks an authority from God. Divine authority is associated more with divine authorization, assistance, signs and guidance than with having free reign or liberty to rule. Here the authority mentioned is more clearly associated with spiritual guidance than those previously mentioned.

وَقُلْ رَبِّ ادْخُلْنِي مَدْخَلَ صِدْقٍ وَأَخْرِجْنِي مَخْرَجَ صِدْقٍ وَاجْعَلْ لِي مِّن لَّدُنكَ سُلْطٰنًا نَّصِيرًا

And say, 'My Lord! Admit me with a worthy entrance, and bring me out with a worthy departure, and make for me a helping authority from Yourself.' (17:80)

The examination of these verses and the above-mentioned reflections enable us to reach the following conclusions about the concept of authority in Islam.

1. Divine authority is beneficial. What God commands is for the good of those commanded. Because of this, practical reason is understood to endorse obedience to the divine commands.
2. Divine authority is always presented in contrast to usurped authority or deceitful authority, which is arbitrary, selfish, and of no real benefit, although appearances to the contrary commonly deceive many.
3. Divine authority is guiding, while de facto authority without divine permission is oppressive and misleading.
4. Authority is backed up by signs, by reason, and by knowledge. It is linked to proof (*hujjah*) and clear

explanation (*bayyinah*). The recognition of authority is by appeal to individual conscience and reason. No one can be forced to recognize the divine authority given to the prophets.

5. The divine authority given to human beings is limited. For example, one is permitted retribution, but one must not be excessive in this. Divine authority cannot be abused because it is conditioned on proper exercise. As soon as one acts abusively, one forfeits any claim to divine authority. No one can claim divine authority for oppression.

6. The divine authority given to the prophets is not divided. Through them, divine guidance is provided in all areas of life: legal, spiritual, sacramental, teaching, political, etc. For example, rules of good hygiene are woven into the rules of ritual practice; moral teachings are not separated from religious law; and spirituality informs the political decisions of the prophets. On the other hand, authority delegated to others is limited to specific authorizations, e.g., retribution.

7. Authority is authorization. One has authorization for what has a good reason, for what excuses one, for what one has been given explicit divine permission, and for what has been divinely commanded.

Our examination of the above verses suffices to establish that the source of authority in Islam is God. This is not surprising. God's authority, however, is not arbitrary. God does whatever He wishes, but His wishes are not capricious. This point is one on which Shi'ite theology differs with the Ash'arite theology that is common among Sunni Islam.

The above verses also demonstrate a principle by which authority is transmitted: by authorization. God delegates authority to the prophets, peace be with them.

The difference between Shi'ite and Sunni accounts of the succession to the Prophet is often portrayed as a political dispute. This is misleading. There *is* a dispute about the political leadership of the Muslim community, but this is secondary to a more fundamental disagreement about authorization. According to the Shi'ah, the ultimate basis of authority is not what anyone wants—neither the will of the people, nor anyone else.

Even the will of God can only be considered the source of authority because of God's essential justice and mercy. Of course, authority is granted by God's will, but it is not because God wills capriciously for the prophets to have authority that they have it; rather, God wills that the prophets have their authority because of His wisdom and mercy, and the prophets' capacity to provide guidance. He chooses whoever He wills in accordance with His wise and beneficent plan for humanity.

God wills justice, for He is just. Justice means that everything should be in its proper place. Those who require guidance should obey those who can best provide it. Thus, God sends His messengers with authority to provide guidance that will enable those who obey His Messengers to arrange their relations with God and men in the way they can acquire virtue and thereby move toward Him.

Likewise, the succession to the Prophet through the Imams is neither determined by heredity nor by the arbitrary selection of the previous authority, but through divine selection announced through the appointment of each of the Imams by the one who held the authority prior to him.

The Prophet Muhammad was authorized by Allah to bring a law for the people that differed in some respects from what was current among the Christians and Jews of the time, although there were many points in common among them.

The successors of the Prophet were not authorized to bring any other law. In this sense there is a difference in the legal authority given to the prophets and to the Imams. Both are given authority in the sense of authorization to guide the people, with a right to obedience from the people, not for their own sakes, but in order to fulfil the divine mandate. However, the law promulgated by the Imams is the law that had been given to Muhammad, and the scripture they taught was the scripture given to Muhammad.

The authority given to both the prophets and Imams to guide the people and which requires obedience is called *wilayah*. *Wilayah* is a special friendship with God, which is usually translated into English as *sainthood*, but the *waliy* in Shi'ism is not understood as the *saint* in Catholicism.

Sometimes *wilayah* and *walayah* are distinguished, so that the former means the guardianship and right to obedience that characterizes the relation of the *mawla* over his followers, while the latter is used to characterize the special friendship and devotion to God of the *waliy Allah*, as well as the love and devotion of the people toward him. Shaykh Saduq tells us that the most noble servants of Allah are those whose *waliy* is the *waliy Allah* and whose enemy is the enemy of Allah.³ In practice the terms are often confused, and the markings that would distinguish the words *wilayah* and *walayah* are often omitted in Arabic texts.

Like the Catholic saint, the *waliy* is a very holy person, one who has an especially intimate relation with God expressed as love and devotion. However, the *waliy* also takes the utmost care to follow the path prescribed toward God through the guidance given His Prophet, and because of his success in following the way toward God, he becomes the means through which God guides others to Himself, too, and thus God grants him the right to leadership and to the obedience of the people.

One of the most important narrations on which the authority of Imam 'Ali is based is that of Ghadir, according to which the Prophet appointed 'Ali as his successor after the farewell pilgrimage. It is reported that he brought 'Ali before the people, raised 'Ali's hand in his own and said: "For whomever I am *mawla*, this ('Ali) is his *waliy*. O Allah, befriend those who befriend him and have enmity for those who have enmity toward him."⁴

An early claim to authority that invokes the concept of *wilayah* may be found in a hadith according to which the grandson of the Prophet, Imam Husayn, is reported to have written the following in a letter to the Shi'ah of Basra:

God has chosen Muhammad from among his people, graced him with His prophethood and selected him for His message. After he admonished the people and conveyed His message to them, God took him back unto Himself. We, being his family (*ahl*), his devotees (*awliya*), his trustees, heirs, and legatees, are the most deserving among all the people to take his place.[5](#)

In this statement it is clear that the sort of authority understood by the Imam to have been given through the appointment of the Prophet includes the authority to command, that is, to provide political leadership to the community, and that this authority is based on spiritual authority through which the Imam guides his followers toward God.

Furthermore, the political authority is also rooted in the spiritual authority, for the political direction of the community is not for the sake of merely worldly benefits or by the arbitrary exercise of power, rather, the community is guided politically by the *waliy* so as to provide an appropriate framework for the spiritual perfection of its members. However, the guidance of the community is not only in order to provide this framework for *individual* spiritual perfection. The Muslim community or *ummah* also has a moral and spiritual role to play in the greater community of nations.

The political and spiritual guidance of the community and its members by the Prophet and Imams would not be possible if it were not based on a proper knowledge of the divine Will. Because of the possession of this knowledge, the *waliy* has teaching authority.

Authority may be further delegated by the Prophet or Imams to others. For example, although the authority to bring a covenant with God in the form of religious law ends with the Prophet Muhammad, the legal authority to issue rulings based on this law and to interpret how the law is to be applied in new circumstances is delegated to those who have gained the appropriate knowledge of the law and are God-fearing.

Likewise, teaching authority is further delegated to those who have the appropriate knowledge and are pious, regardless of whether that knowledge is of the law, doctrine, hadiths, the recitation of the Qur'an, its interpretation, etc.

Sacramental authority is a special case that deserves attention given the great differences in this between Catholicism and Islam. There is no priesthood in Islam. There are no sacraments, or special rituals that serve as vehicles for obtaining grace, that require a special person with specific authority to perform them.

All of the major sacraments of Islam (if we may be allowed to use the Catholic terminology for them here), that is, bearing witness, prayer, alms, fasting and hajj, can be performed by any Muslim with knowledge of the relevant laws without the presence of the clergy (although leading prayers requires both knowledge of the ritual and justice).

There is no power or authority invested in any person by any Muslim religious institution for the

performance of any ritual or for the issuing of any decree of Islamic law or for the statement of doctrine.⁶

To find something analogous to the Catholic notion of religious authority in Islam, we would do best to take a glance at the Sufi Orders. According to Sufis, spiritual authority has been passed down through a chain of specific designations, called a *silsilah*, on the basis of which claims are made to spiritual authority. Among both Sunni and Shi'i Sufis, these chains go back to the Prophet through 'Ali.

This not only provides the Sufis with a doctrine of spiritual authority derived by appointment or designation, but it also introduces a sort of sacramental authority that is absent from non-Sufi Islam. The Sufis hold that the pledge between the master and disciple, called *bay'ah*, is a vehicle of divine grace or *barakat*, in a manner comparable with Catholic teachings on the sacraments.

This initiatory ceremony must be conducted by the Sufi master or someone appointed by him and the initiate. This provides an approximation to the Catholic idea of a sacrament that also can be found in Islam, although it does not correspond to any particular Catholic sacrament.

An even closer approximation in Sufism to a specific Catholic sacrament, that of Holy Orders, may be found in the appointment of a *shaykh* by the Sufi *pir*, although this is in some ways more like the appointment of a bishop than like the sacrament through which one becomes a Catholic priest.

At any rate, even these analogies to Catholic sacraments are only found in Sufi Islam, whether Shi'i or Sunni branches of Sufism. In non-Sufi Shi'i Islam as in non-Sufi Sunni Islam, there is nothing like a sacrament that requires performance by a religious authority.

Sunni and Shi'i theologians differ on the nature of political authority. For the Shi'ah, the *wilayah* of 'Ali is comprehensive, in the sense that it includes spiritual, teaching, legal and political authority. For Sunni theologians, the *wilayah* of 'Ali is such that he can be recognized as a spiritual authority, (although his spiritual authority is not comparable with that of the Prophet), but this is held to have no political implications.

'Ali's political authority is limited, in Sunni Islam, to the period of his caliphate. He is recognized as a teaching authority, but only to the extent that he had knowledge of the Qur'an and the teachings of the Prophet. He is accorded legal authority in Sunni Islam because of this same knowledge. The political authority of the caliphs, according to Sunni Islam, is based on the virtues of the caliph and on his acceptance by the Muslim community.

The authority of the Imams in Shi'ite Islam, on the other hand, does not require acceptance by the Muslim community. Their authority is appointed whether anyone recognizes it or not. In theory, there is no significant difference in this regard among the various Shi'i sects. Ismaili Shi'a, for example, accept the same basic theory of Imamate as the Twelver Shi'a, but differ as to the identity of some of the Imams.

In traditional Sunni Islam, legal authority is confined to four schools of jurisprudence: Hanbali, Hanafi, Maliki, and Shafi'i. Although there are Sunni Muslims who have called for a re-examination of the formulation of Muslim law in these four schools, the traditional opinion has been that the doors to *ijtihad* (the independent deriving of the law from its sources) are closed.

In Shi'i Islam, on the other hand, the doors to *ijtihad* have never been closed. For the Shi'ah, legal authority requires not merely a knowledge of the sources, it implicitly also requires the wisdom to derive rulings on specific issues in changing circumstances. Legal authority to derive such rulings is based solely on knowledge and intelligence (as well as piety), however, and does not require any specific sort of permission, according to the dominant view among the Shi'i 'ulama, called *usuli*.

During the Safavid period, there was a debate between *usuli* and *akhbari* schools of Shi'i jurisprudence; and the *akhbaris* argued that any sort of religious authority, whether legal or merely for the narration of hadiths, required permission from a previous authority. Although many Shi'i religious authorities continue to receive permission from their teachers or from the seminaries for *ijtihad*, there are notable *mujtahids* who have practiced *ijtihad* without obtaining any such permission.

According to Twelver Shi'a, religious authority and *wilayah* is currently accorded to the Twelfth Imam, who is in a state of *ghaybah*, or occultation. The period of *ghaybah* is divided into two: minor and major. During the minor *ghaybah*, the 12th Imam appointed deputies in order to attend to various affairs of his followers and to provide guidance on some matters. The period after the death of the last deputy, who acted as an intermediary between the people and the Imam, marks the beginning of the major occultation.

So, the question arises as to where religious authority is to be found during the major occultation. For this purpose we need to distinguish authority needed for practical affairs and authority pertaining to doctrine. With regard to teaching, the Qur'an and the hadiths are available to all who have the ability to understand them. Teaching authority is based on knowledge.

There is no magisterium to settle doctrinal disputes in Islam. Such disputes can only be settled through strength of argument, reason and knowledge of the relevant sources. It is the duty of each Muslim to ascertain the truth of the fundamental teachings of the religion by his own intellectual efforts, and merely taking the word of an expert is specifically forbidden.

With respect to legal and political matters, however, some criterion for action is a practical necessity. In matters of religious law, each Shi'a must either have competence to derive the law from its sources or follow the rulings of someone who has such competence.

Those who are not experts are advised to investigate, by asking who devote their lives to the study of Islamic law; and on the basis of this investigation to follow the pious *mujtahid* they believe is the most knowledgeable as a source or *marji'* of imitation (*taqlid*) in matters of the practical laws of Islam.

According to some *hadiths*, not only did the Imams refer people to the scholars of Islamic law for legal rulings, but also for arbitration of disputes. This has been taken by many Shi'i scholars to indicate a general delegation of practical authority over disputed issues to the *'ulama*. The political form of this idea of delegation is known as the doctrine of *wilayah al-faqih*, the guardianship of the jurisprudent.

Imam Khomeini also argued on rational and practical grounds for the need of religious government. The basic idea is that Islam includes teachings about social, economic and political affairs that can only be put into practice through an Islamic government, a government guided by the teachings and rulings of Islam as understood by those with appropriate expertise in such matters.

There are various interpretations of the doctrine of *wilayah al-faqih*, which differ on such issues as the qualifications for the position and the scope of its authority; however there is general agreement that the institution is based on exigency and the application of reason to various principles of Islam and governance. It is not a position, like that of the papacy, authorized through something like apostolic succession. One of the most famous statements of the doctrine in recent history is that of Hajj Mulla Ahmad Naraqi (1771–1829):

As for the jurists' duty over people's affairs and over what they have full and all-embracing *wilayah* we, by divine grace, say that a just jurist's *wilayah* lies in two matters. First, every *wilayah* possessed by the Prophet and the Imams (who were the sovereigns and pillars of Islam) is bestowed upon the jurists as well, except what is excluded by juridical proof such as *ijma'* (consensus) or *nass* (established text).... Secondly, every action concerning the people's faith and worldly affairs is necessary and inescapable according to reason and habit or according to *Shar'* (law)....

It is obvious and understood by every common or learned man, that when the messenger of God is on a trip, someone behind him is assigned as his substitute, successor, trustee, proof.... This person will accrue all the power that the Prophet enjoyed over his community.

There is no doubt that most *nusus* (texts) concerning the *awsiya* (heirs) of the infallible Imam imply the transfer of all power, not merely some of it. This becomes clear especially in connection with the traditions concerning the rank and place of jurists, who are the most excellent men after the Imams....[7](#)

When we look through the history of Shi'i political thought, we find that from time to time there have been groups of Shi'a who have taken a position diametrically opposed to that expressed above by Naraqi. One of the most extreme of these groups has been the *hujjatiyyah*, who argue that during the greater occultation of the Twelfth Imam, the Shi'a cannot enforce Islamic law, carry out its punishments, or hold Friday prayers.

Others, such as Shahid Mutahhari, argued that during the major occultation, many of the responsibilities of the Imam can be carried out by the office of *wilayah al-faqih*, but that some remain as the exclusive authority of the Imam. The dominant view among the Shi'i *'ulama* today, however, tends to favor the position that there are no specific areas of authority that are reserved by the Imam and cannot be carried

out by the office of *wilayah al-faqih*.

Despite precedence in Shi'i theological writings, such as the above quote from Mulla Ahmad Naraqi, the doctrine of *wilayah al-faqih* was not put into practice in the formation of a government until the Iranian Islamic Revolution in 1979. Since the Revolution, the office has become recognized in the Constitution of the Islamic Republic of Iran.

Clerical authority in Shi'i Islam, however, takes various forms. At the core is the capacity for *ijtihad*, the ability to derive the rulings of religious law from its sources. The conditions traditionally given for one to have this ability are knowledge and piety. Not all who wear the Shi'i clerical robes and turban have reached the level of *ijtihad*, however.

In an Islamic government, the judges will be appointed by the *wali al-faqih*. Even in the absence of Islamic government, however, it has been common for Muslim communities to appeal to their local scholars to act as judges in various sorts of disputes. One who has reached the level of *ijtihad* is able to issue a legal ruling on the basis of the sources of Islamic law, called a *fatwa*. One who issues such rulings is called a *mufti* (although this term is not widely used among contemporary Shi'a).

As mentioned above, every Shi'i who is not able to derive religious rulings on the basis of their sources must follow one who has this ability. The *mujtahid* who is followed is called a *marji' taqlid* (source of following). Traditionally, the conditions given for being a *marji' taqlid* were that he should be the most learned of the pious scholars. In order to determine who has such qualifications, one should himself be a scholar or one should consult with those who have sufficient expertise.

In recent years, however, it has been suggested that the condition of learning includes deep awareness of contemporary issues and views, as well as social and political problems. In the case of *wilayah al-faqih*, the person who is to occupy this position should be a *mujtahid*, he should be pious and just, he should have administrative talent and courage, and he should have social and political insight.⁸

In addition to *ijtihad*, *maj'iyah*, *wilayah al-faqih*, and judgeship, the Shi'i clergy plays many other roles, such as leading prayers, teaching, leading people in the performance of hajj, giving sermons, doing research on theological issues, etc. Each of these positions has its own specific requirements. In general, however, the appeal to the clergy to perform any such function is based on the requisites of knowledge and piety.

With regard to the recognition of authority, there is no compulsion. Each believer is advised to use his own reason to accept the authority of those best qualified for its exercise. No one can be compelled to accept any particular person as *marji'*.

Even with respect to the office of *wilayah al-faqih*, the current Leader himself, Ayatollah Khamenei (may Allah protect him), has ruled that no one can be compelled to accept his authority and if one erroneously rejects this authority on the basis of his own reasoning, he is not to be considered a sinner because of

this. However, failure to recognize authority is no excuse for disobedience of the law or criminal activity.

Tradition and Sunnah

In both Catholicism and Shi'i Islam, tradition may be seen as a source for religious teaching second only to scripture, and thus as authoritative. However, what is meant by tradition differs in these two faiths, although there are also several common points. Both Catholics and Muslims agree that divine guidance has been delivered by scripture and by the passing down of narrations from one generation to another.

However, for Christians, scripture is also a record of what was passed down about the life of Jesus and his apostles, the epistles of Paul, and other written documents that were selected by the Church as authoritative, while for Muslims, scripture is the record of the revelation given to the Prophet.

To Muslims, the New Testament looks more like a book of hadiths than the direct revelation (*wahy*) of God. Nevertheless, Christians and Muslims, along with Jews and Zoroastrians, are recognized by the Shi'a as "*ahl al-kitab*", people of the book; and the books in question are taken as containing divine messages for their peoples. These books reach contemporary believers in any of these faiths by being handed down from one generation to another, that is, by tradition.

For Catholics, however, Church tradition is itself authoritative. Catholics believe that the history of the Church, the decisions made in its councils and the statements of doctrine enunciated by its popes are guided by the Holy Spirit, and as such have divine authority.

For the Shi'a, on the contrary, there is no analogous belief. Theological doctrines that were common at one time may be rejected later if good reason is found for so doing regardless of traditional acceptance. Because of this, for example, Shaykh Saduq's theology was largely superceded by that of Shaykh Mufid, and later the *akhbari* school of thought was displaced by the *usuli* school.

The fact that a given doctrine or practice becomes accepted by the majority of scholars at any given time carries no theoretical weight for other scholars. Each scholar must use the best of his own cognitive abilities to study the sources and reach his own conclusions. In this sense, the Shi'i approach to religion is a rationalist one.

Sunnah, which is often translated as "tradition", is indeed authoritative for Muslims, but not the *sunnah* of the clergy, of the seminaries, or of the Muslim community; rather, it is the *sunnah* of the Prophet (*s*) that is taken by Muslims as second in authority only to the Qur'an.

In Islamic jurisprudence, four sources of legal rulings are commonly mentioned:

1. the Qur'an
2. the Sunnah

3. reason (Shi'i) or analogy (Sunni)

4. consensus

The reliance on consensus in Sunni legal theory is in some respects similar to the Catholic reliance on tradition, although Catholics have focused more on doctrinal issues while Muslims have been more concerned with practical rulings. However, for the Shi'a, consensus is reduced to the Sunnah, since it is valid only when it unveils the view of the Prophet or the Imams.

Hence, for all practical purposes, in present circumstances the sources of legal rulings among the Shi'a are limited to the first three mentioned above: the Qur'an, the Sunnah, and reason.

Sunni and Shi'i Muslims are in agreement that what is meant by the Sunnah is the example of the Prophet (s) in word and deed as recorded and passed down in the form of narrations, called hadiths. For the Shi'a, however, narrations of the words and deeds of the twelve Imams are also taken as authoritative.

Sometimes this is justified on the grounds that knowledge of the Sunnah of the Prophet (s) was best preserved in his household, his *ahl al-bayt*. Nevertheless, the authority of the Imams is seen as derivative relative to the Sunnah of the Prophet (s), and the Imams themselves often justified the stance they took with reference to the Sunnah of the Prophet (s).

1. Pater Liber is one of the Roman gods who came to be identified with Dionysus, or Bacchus, the god of licentiousness and drunkenness.

2. See also 53:23.

3. Muhammad ibn Babawayh al-Qummi, *A Shi'ite Creed*, tr. Asaf A. A. Fyzee (Tehran: WOFIS, 1982), 85–86. Available also on line at: <http://www.al-islam.org/a-shiite-creed-shaykh-saduq> [8]

4. This narration is found in various Shi'ite as well as Sunni collections of hadiths. See the book: *Shi'ism in Sunnism* by Sayyid Muhammad Reza Mudarrisi Yazdi (Qom: Ansariyan, 2003), p. 52. Available on line at: <http://www.al-islam.org/shiism-in-sunnism-sayyid-muhammad-ridha-mudarris...> [9]

5. This narration is reported in Tabari, cited by S. H. M. Jafri in *The Origins and Development of Shi'a Islam* (Qom: Ansariyan, 1989), 179–180. Also available on line at: <http://www.al-islam.org/the-origins-and-early-development-of-shia-islam-...> [10]

6. There is an established idea among many Shi'a jurists that in the time of the presence of Imams as well as in the reign of a just jurist, certain positions such as acting as a judge or Friday and Eid prayer leader must be decided by appointment. (Editor's note)

7. Hajj Mulla Ahmad Naraqi, *'Awaid al-Ayyam* (Qom: Maktab-e Basirati, n.d.) 187–188, translated in *Wilayah and Marjaiyah Today* (Houston: Al-Fajr, 1995), 214.

8. See Ayatollah Ali Meshkini, "Wilayat al-Faqih," in *Wilayah and Marjaiyah Today*, 195–200.

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